

Intellectual Property Rights

Sessional Exam - Detailed Solutions

Q1. What do you understand by Indian Patent law and explain in details: 1) The Patent Act 2) Procedure for Filing the patent application.

Understanding Indian Patent Law

Indian Patent Law governs the granting of patents in India. A patent is an exclusive statutory right granted by the Government of India to an inventor for a limited period (typically 20 years). It allows the inventor to exclude others from making, using, selling, or importing the patented product or process without their consent. The primary goal of this law is to encourage innovation and industrial progress by rewarding inventors while ensuring the invention eventually becomes public knowledge.

1. The Patent Act

In India, the patent system is governed by **The Patents Act, 1970**, and the subsequent Patents Rules, 2003.

- **Evolution:** The Act has been amended several times (1999, 2002, and 2005) to make it fully compliant with the TRIPS (Trade-Related Aspects of Intellectual Property Rights) agreement. The 2005 amendment was highly significant as it introduced product patents for food, chemicals, and pharmaceuticals.
- **Key Provisions:**
 - It defines what is an "invention" (a new product or process involving an inventive step and capable of industrial application).
 - **Section 3 and 4:** These are crucial sections that list "non-patentable" inventions, preventing the patenting of mere discoveries, algorithms, business methods, traditional knowledge, or inventions contrary to public order or morality.
 - **Compulsory Licensing:** It includes provisions where the government can allow a third party to produce the patented product without the patent owner's consent under specific emergency conditions or if the public's reasonable requirements are not being met.

2. Procedure for Filing a Patent Application

Filing a patent in India involves a strict, multi-step process at the Indian Patent Office (IPO):

1. **Patentability Search (Optional but Recommended):** Before filing, a thorough search is conducted to ensure the invention is truly novel and does not already exist in the public domain (prior art).
2. **Drafting the Application:** The inventor must prepare the patent specification.
 - *Provisional Specification:* Filed when the invention is still conceptual. It secures a priority date. A complete specification must follow within 12 months.
 - *Complete Specification:* Contains the full, detailed description of the invention, including drawings and the specific "claims" defining the legal boundaries of the patent.
3. **Filing the Application:** The drafted application is submitted to the appropriate Patent Office (Form 1, Form 2, etc.) along with the required government fees.
4. **Publication:** The application is published in the official Patent Journal after 18 months from the date of filing. An applicant can also request an "early publication" by paying a fee.
5. **Request for Examination (RFE):** Patents are not examined automatically. The applicant must file an RFE (Form 18) within 48 months from the date of filing.
6. **First Examination Report (FER):** The Patent Examiner reviews the application and issues an FER containing objections regarding patentability, formatting, or scope.
7. **Response to FER and Hearing:** The applicant must respond to these objections within 6 months. If required, a hearing is scheduled to resolve outstanding issues.
8. **Grant of Patent:** Once all objections are resolved and the examiner is satisfied, the patent is granted and published in the patent journal.
9. **Renewal:** To keep the patent "alive" for its 20-year lifespan, annual renewal fees must be paid.

Q2. What do you understand by Copyrights & Which kind of work can be copyrighted under copyright?

Understanding Copyrights

Copyright is a form of Intellectual Property Right (IPR) granted by the law to creators of original literary, dramatic, musical, and artistic works, as well as producers of cinematograph films and sound recordings.

- **Expression, not Idea:** Copyright protects the *expression* of an idea, not the underlying idea, procedure, or concept itself.
- **Exclusive Rights:** It gives the creator the exclusive legal right to reproduce, distribute, adapt, translate, perform in public, and display their work.
- **Duration:** In India, under the Copyright Act, 1957, the general term of copyright is the lifetime of the author plus 60 years after their death.

Kinds of Works that can be Copyrighted

Under Section 13 of the Indian Copyright Act, copyright subsists in the following classes of works:

1. **Original Literary Works:** Includes books, articles, novels, poems, scripts, tables, and compilations. Significantly, computer software, programs, and databases are also protected as literary works under Indian law.
2. **Original Dramatic Works:** Includes pieces for recitation, choreographic work, or entertainment in a dumb show (pantomime), the scenic arrangement or acting form of which is fixed in writing or otherwise. (Note: Cinematograph films are separate).
3. **Original Musical Works:** Includes a work consisting of music and any graphical notation of such work (sheet music). It does not include any words or any action intended to be sung or spoken with the music (those fall under literary/dramatic works).
4. **Original Artistic Works:** Includes paintings, sculptures, drawings (including diagrams, maps, charts, or plans), engravings, photographs, and works of architecture or artistic craftsmanship.
5. **Cinematograph Films:** Any work of visual recording along with its sound recording. This covers movies, documentaries, and video content.
6. **Sound Recordings:** A recording of sounds from which such sounds may be produced, regardless of the medium (e.g., songs on a CD, podcasts, digital audio files).

Q3. Discuss the Patentable criteria.

For an invention to be eligible for a patent under the Indian Patents Act, 1970, it must satisfy a rigorous three-pronged test. These are known as the patentability criteria:

1. Novelty (Newness)

The invention must be absolutely new. It must not have been published, publicly disclosed, used, or made available to the public anywhere in the world before the date of filing the patent application. If the invention already exists in the body of knowledge known as "prior art," it fails the novelty test.

2. Inventive Step (Non-Obviousness)

Even if an invention is new, it must not be an obvious combination of existing knowledge. The Indian Patents Act defines an inventive step as a feature that involves:

- **Technical advancement** as compared to existing knowledge, OR
- **Economic significance**, OR
- **Both**, and makes the invention **not obvious to a person skilled in the art**.

This means a standard professional in that specific field shouldn't look at the invention and say, "That was obvious; I could have easily thought of doing that by combining standard techniques."

3. Industrial Applicability (Utility)

The invention must possess practical utility. The Act states it must be "capable of being made or used in an industry." An abstract theory or a machine that contradicts the laws of physics (like a perpetual motion machine) cannot be patented because it cannot be practically built or used to provide a tangible benefit.

Additional Condition: Statutory Exceptions (Sections 3 & 4)

Beyond these three main criteria, the invention must not fall under the list of non-patentable subject matters detailed in Sections 3 and 4 of the Indian Patents Act. For example:

- A mere discovery of a scientific principle.
- A method of agriculture or horticulture.
- A mathematical or business method or a computer program *per se*.
- Inventions related to atomic energy.
- Traditional knowledge (e.g., trying to patent the healing properties of turmeric).

If an invention successfully meets the three main criteria and bypasses the exceptions of Section 3 and 4, it is deemed patentable.